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File No.: EXP202416691

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 20, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA (hereinafter, FSOM), through the agreement that is transcribed:

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File No.: EXP202416691

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA, with NIF G07324239 (hereinafter, FSEOM) promoted the implementation of ***PROJECT.1, with the objective of (...). The data was collected by the patient themselves in a mobile application where it was registered using a code provided by their medical oncologist. (...)

For the execution of this project, FSEOM had ***COMPANY.1 as a supplier and data processor of the personal data collected within the framework of the aforementioned study.

On June 23, 2023, this Agency was notified of a personal data breach by the FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA, with NIF G07324239.

This notification informed the following:

- The incident was Intentional, to harm the responsible party / processor or the affected individuals
- The origin of the incident was: External: Others, unrelated to the responsible party and processor
- What may have occurred?: Cyber incident: (...)
- As a consequence of the incident, the following has been affected: Confidentiality

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- Specifically referring to the data affected by the confidentiality breach. Are the data securely encrypted, anonymized, or protected in such a way that they are unintelligible to anyone who may have had access or cannot identify individuals? No
- What may have occurred? You may select multiple options: Being a victim of phishing/spamming campaigns, Financial losses, Loss of control over personal data
- To what extent could the identified consequences affect individuals? Individuals may encounter significant inconveniences, causing limited harm, which they may overcome despite some difficulties (additional costs, denial of access to commercial services, fear, lack of understanding, stress, minor physical ailments, etc.)
- As of the date of this notification, are you aware that any of the identified harms have materialized, to the degree indicated in the previous question? No
- How do you assess the likelihood of the aforementioned harm materializing for the affected individuals with the indicated severity? High
- Provide a brief description of what occurred. On Wednesday, June 14, 2023, late in the afternoon, ***COMPANY.1 detected unauthorized access (...) that directly affects personal data of participants in a study promoted by the Spanish Society of Medical Oncology, of which ***COMPANY.1 is the CRO and technological provider and, additionally, the data processor.
- Types of affected data: Contact data, Health data (other health data)

- In total, how many individuals have had their data affected by the personal data breach? (...)
 - Indicate the date of detection of the breach, understood as the date on which the responsible party is certain that personal data has been affected. 20/06/2023
 - Do you know the date on which the breach began? Approximately / Estimated
 - Indicate the date of the start of the breach. 14/06/2023
 - Security measures before the breach: (...)
 - Have you adopted new security measures after the incident that could have prevented the breach?
- Yes
- Mark exclusively the new security measures and those that have been updated (...).
 - Communication to those affected by the personal data breach. Has the breach been communicated to the affected individuals under the previously described conditions? No, but they will be informed
 - At the latest, the affected individuals will be informed by the following date: 21/07/2023
 - Means by which they will be informed: Communication directed personally to each affected individual (postal, email, SMS, or similar), Public statement or publication on corporate website
 - Data processor involved in the personal data breach? Yes
 - Name of the Organization: ***COMPANY.1.

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On July 21, 2023, the FSEOM submitted to this Agency a written extension of the notification of this breach, in which the information initially provided remained intact, except for:

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What is your intention? Modify a previously made notification to provide relevant information

-

What may have occurred? You may select several options: Being a victim of phishing/spamming campaigns, Loss of control over your personal data

-

To what extent could the identified consequences affect individuals? Individuals will not be affected or may encounter some very limited and reversible inconveniences that they will overcome without any problem (time to re-enter information, inconveniences, irritations, etc.)

-

In total, how many people have had their data affected by the personal data breach? 2622

-

Indicate the date on which the breach was resolved: 20/07/2023

-

Communication to those affected by the personal data breach: Has the breach been communicated to the affected individuals under the previously described conditions? Yes

-

Date on which the information was provided: 20/07/2023

-

Number of people informed: 2622

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Means by which the information was provided: Communication directed personally to each affected individual (postal, email, SMS, or similar) with guaranteed delivery and reading, Public statement or publication on corporate website

SECOND: As a consequence of the known facts, on July 13, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation actions referred to in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the

supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

On February 12, 2024, a document was received from the FSEOM, in response to a request from this Agency, which provides, among other things, the following information:

1. Document No. 1: Expert report on the breach, dated July 5, 2023, prepared by the National Association of Cybersecurity and Technological Expertise, this report incorporates the following statements made by the IT expert:

“(…)”.

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“Technical recommendations that would improve the client's platform:

(…)”

“During the course of the work and drafting of this expert opinion, ***COMPANY.1 has implemented various improvements to its procedures, which I outline below:

(…)”

“Additionally, I have been able to verify the planning of technical improvement measures that are underway or will begin shortly:

(…)”

The expert report concludes with the following text:

(…)”

2. Document No. 2: Expert report prepared by an external company contracted by FSEOM as a result of the breach (***COMPANY.2), dated February 9, 2024. The following is highlighted from its content:

-

“***COMPANY.1 notified SEOM ... via email dated June 16, Friday at 17:44, of the incident detected on June 14 affecting an indeterminate number of clients of ***COMPANY.1, including SEOM, indicating that with the available information it cannot be concluded that there is an impact on personal data (…)

On Tuesday, June 20 at 17:44, a new email communication was made by ***COMPANY.1 informing SEOM of the measures adopted in its systems, as well as the fact that they could not yet conclusively determine whether there had been an impact on personal data but that it was possible and they would confirm if that were the case.

From the information held by ***COMPANY.2, the confirmation of the impact on personal data occurs on June 21, at which point SEOM sends ***COMPANY.1 a notification form to adequately communicate the incident to the AEPD, the form is received on June 22. It is concluded that in the case of SEOM, the impact on personal data involves approximately (…)

-

“Throughout this process, ***COMPANY.2 began to support SEOM from the aforementioned June 23, concluding on July 19 after analyzing the expert report received from ***COMPANY.1.

The objective pursued by SEOM was to verify the veracity of the information provided by ***COMPANY.1 and to expand the information as much as possible to evaluate actions to be taken.

(…)”

After receiving the expert report prepared by ***COMPANY.1, the assessment of ***COMPANY.2 was communicated on July 18, concluding that the information provided by that report was correct and the measures

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adopted equally adequate and evaluating that, at the time of the incident:

o

(...)

-

"We must indicate that after a second analysis of the information received between June 23 and July 19, 2023, including some subsequent documents, we estimate that although the information from the central systems and applications of ***COMPANY.1 is very complete, as well as the measures implemented are also satisfactory, it is necessary to complete for SEOM information regarding (...) and that was the origin vector of the incident, specifically:

☐

(...)"

3. It is stated that "The personal data affected by the cyberattack and that were stored on the servers of ***COMPANY.1 were the following:

☐

Email of the participant in the Observational Study

☐

Mobile phone number

☐

Health-related data (...) consisting of:

☐

(...)

Document No. 3 is provided: the four data collection questionnaires, in which the following information is requested, among others: "(...)" and questions related to health (...).

4. Document No. 4 is provided: record of processing activities of the FSEOM, with, among others, the following content:

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"REFERENCE: PROJECT_***PROJECT.1"

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"Data processors": "***COMPANY.1: CRO that manages the Observational Study as a whole from the perspective of study management and from the technological perspective (mobile app and technological architecture)."

-

"How does it occur?": "Collection, storage, pseudonymization, extraction of pseudonymized data. Access to pseudonymized data."

-

"Has a contract been signed?": "Yes."

5. "In relation to the communication made to the affected parties informing them of the breach suffered: on July 20, 2023, the incident notice "INCIDENT COMPUTER STUDY ***PROJECT.1" was sent via the platform ***URL.1 to all participants in the study "***PROJECT.1" whose text length corresponds to 4 consecutive SMS with the following wording.

"COMPUTER INCIDENT STUDY ***PROJECT.1 We inform you that a computer incident has occurred in the data storage of the study ***PROJECT.1, in which you have participated. The incident has already been resolved. We recommend that you disregard any mobile communication that is not sent by your hospital or oncologist. You can access complete information about the incident and the scope concerning your data through the secure link to our server: ***URL.2."

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The link inserted in the SMS is the path to a hidden and private file on the website server www.seom.org and which we attach as DOCUMENT NO. 5." Document No. 5 is provided, titled "FSEOM COMMUNICATION STUDY ***PROJECT.1" with, among others, the following content: "From the SPANISH SOCIETY OF MEDICAL ONCOLOGY FOUNDATION (FSEOM) we inform you that on June 14, 2023, the provider of the study ***PROJECT.1 suffered a cyberattack that has affected (...), which has resulted in a breach of confidentiality of some personal data of the participants.

As privacy is very important to us, we have taken all measures within our reach to resolve the incident and minimize any damage that may be caused; (...).

Due to this, there could be some loss of control over the personal data of the participants, as well as the receipt of unwanted communications (...). (...)"

In its letter dated February 12, 2024, the FSEOM stated that: "The notice was correctly delivered to 84.4% (...) users) of the recipients and, on the contrary, could not be delivered to 15.6% (...) users). Delivery and sending report by users are attached as DOCUMENTS NO. 6. A copy of the notification and the forwarding procedure is also provided as DOCUMENTS NO. 7."

Document No. 6 is provided with screenshots containing the following content:

"Communication July 23

Details

Date: 20/07/2023 13:10

User: fseom

Recipients: (...)

SMS/Recipients: 4

Total SMS: 10460

Cost: (...) €"

"Messages

Unknown: 0

Delivered: (...)

Not delivered: (...)"

The text of the message sent is the same as previously reproduced.

Document No. 7 is provided, a spreadsheet with the following fields in the top row: "Number", "Reference", "First Name", "Last Name", "Delivery" (column completed with the values "Delivered"/"Not delivered"), "SMS sent", "SMS delivered".

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A spreadsheet is also attached with the following fields in its top row: "Visit" (column completed with the values "no" in all its rows), "Clicks", "Location", "Device", "Model", "Email", "Date of birth".

Additionally, a spreadsheet is attached with the following fields in its top row: "User", "SMS Id", "Campaign Id", "Usage Reference", "Send Date", "Report of in", "Report Date", "Sender", "Recipient", "Country", "Routing", "#SMS", "Message", "Operator", "CompatibleR", "In blacklist", "Description e", "Type of error", "Campaign name".

6. Document No. 8 is provided, which is a certificate signed on February 7, 2024, by the secretary of FSEOM, certifying: "That, after notifying the affected parties of the personal data security breach that occurred on June 14, 2023, we have not received any claims or communications regarding this from any of them."

7. Document No. 9 is provided, which is a screenshot of an email sent on June 20, 2023, from ***COMPANY.1 to FSEOM containing, among other things, the following content (sic):

"In accordance with the conversation held yesterday, we would like to use this email to share with you more detailed information about the security incident suffered by ***COMPANY.1 due to a hack of a secondary storage system. (...)

After days of analysis, both by our internal team and by external advisors and a technological expert

assessment, we are learning more information about what happened and, at this moment, we cannot definitively confirm that, in your case, personal data related to the health of the patients have been affected. (...)

A screenshot of an email sent on June 16, 2023, from ***COMPANY.1 to FSEOM is also provided, containing, among other things, the following content:

“Dear Client,

We are contacting you to inform you, in a reliable manner, that ***COMPANY.1 has detected unauthorized access to a secondary storage system that directly affects the personal data stored in a database for which you are Responsible or Processor of the Treatment. (...)

(i) Date on which the security breach was detected: In the afternoon of Wednesday, June 14, 2023

(ii) Nature of the violation: Unauthorized access to (...).

(iii) Affected projects: ***PROJECT.1

(iv) Potential number of affected data: (...)

(v) Categories of affected data:

- (...)

8. In its letter dated February 12, 2024, FSEOM indicated: “Attached as DOCUMENT NO. 10” is the Service Provision Contract and the Processing Manager Contract signed between FSEOM and ***COMPANY.1. Additionally, ***COMPANY.1 filled out a checklist certifying whether it was a compliance provider in privacy, a document that is also attached to this documentary block” (sic). Document No. 10 is provided, which is a copy of the contract dated April 20, 2021, between ***COMPANY.1 (as provider) and FSEOM (as client), for the execution of the project “***PROJECT.1”. A copy of the contract between FSEOM and ***COMPANY.1 is also provided, with the purpose of “defining the conditions under which the PROCESSOR will carry out the processing of personal data for the provision of the service contracted by FSEOM, in accordance with the provisions of Spanish data protection legislation and Article 28 of the GDPR and related provisions.”

In point 3 of the contract, it is established: “The processor must adopt the measures that, according to the risk analysis carried out by FSEOM, have been communicated to it and are necessary to ensure an adequate level of security; such measures are provided in Annex II of this contract.”

The following measures are highlighted in Annex II (among others):

“(...)”.

The contract also incorporates an appendix (Appendix 3) with additional information about the Security Measures of ***COMPANY.1, highlighting the following as relevant:

“(...)”

9. Document No. 11 is provided, which is a document titled “Risk Report for Rights and Freedoms and DPIA” dated June 25, 2021, containing, among other things, the following content:

- “SUPPORT ASSETS USED

The support assets required for carrying out the planned processing operations are:

- (...)

- “The data flow will be as follows:

(...)”

- “The processing operations that the entity intends to address pose a high risk to the rights and freedoms of the data subjects derived from:

- Processing of especially sensitive data related to the health of the participant in the Observational Study (Article 9 of the GDPR)” (sic)

- “For the processing of personal data whose risk is the disclosure of special categories of data that produce legal effects on the...

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Such persons as: discrimination, loss of control by the responsible party, or loss of control of professional secrecy, the following controls have been proposed:

☐

(...)”

☐

(...) In relation to the disclosure of special category data, the level of residual risk is medium.”

-
Regarding the person responsible for the implementation of such measures, the document refers to “***POSITION.1 and ***COMPANY.1”.

10. Document No. 12 is provided, which is a document from ***COMPANY.1 titled “NEW TECHNICAL AND ORGANIZATIONAL MEASURES ADOPTED BY ***COMPANY.1 TO AVOID, AS MUCH AS POSSIBLE, SECURITY INCIDENTS LIKE THE ONE THAT OCCURRED”. From its analysis, the following statements are extracted, among others (the underlining is ours):

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“(…)
11. Document No. 13 is provided, which is a document from ***COMPANY.1 titled “SECURITY MEASURES TO REDUCE RISK OF SIMILAR ATTACK” with the measures that were carried out to reduce the risk of an attack of similar characteristics. From its analysis, the following statements are extracted, among others:

(…)
12. Document No. 14 is provided, which is a document from FSEOM titled “Procedure for Responding to Security Breaches”, in which, among other information, it indicates:
“This procedure establishes the following aspects:

☐
Roles and responsibilities of personnel.

☐
Details of appropriate contacts.

☐
Appropriate communication channel.

☐
Steps to follow.”

A document from ***COMPANY.1 titled “Notification and Communication of Incidents” (original in English) is also provided.

13. Document No. 15 is provided, which is an invoice from ***COMPANY.2 to FSEOM, dated June 26, 2023, with the following reference “***REFERENCE.1”. Three invoices from ***COMPANY.5 to FSEOM, dated September 13, 2023, are also provided, for the concept of: “(…)

14. Document No. 16 is provided, which is a copy of a complaint filed with the National Police on June 17, 2023, by the representative of ***COMPANY.1, who reported that:

“--...there has been unauthorized access (...).

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-- A virtual txt file is located on the server whose content is as follows:

“Contact ***EMAIL.1 or ***EMAIL.2 ASAP to recover. Your files are safe.”

A copy of a complaint filed with the National Police on July 12, 2023, by the representative of FSEOM is also provided, who reported that:

“—On June 19 of this year, the Foundation was informed that the servers contracted by ***COMPANY.1 had suffered a cyberattack resulting in the theft of data from the patients who participated in the aforementioned study.”

15. FSEOM indicates that “Document No. 17 is attached, a copy of the training conducted at FSEOM regarding security incidents, and a copy of the argument prepared to address those affected by the security breach in case they contacted FSEOM (DOCUMENT No. 18).

Document No. 17 is provided, which is a document of “***REFERENCE.2” titled “Planning and Implementation of Processes to Detect, Contain, and Mitigate a Security Violation.”

Document No. 18 is provided, which is a document of “***REFERENCE.3” titled “Argumentation (Q&A;)”, in which it states:

“(…) What happens if my data is fraudulently used? What risks do I run?

There are several fraudulent uses of data obtained through criminal procedures. The common practice is the sale to marketing companies, as well as attempts to access personal devices.

In the case of data being sold to marketing companies, the effect will be the receipt of unwanted advertising through various channels, (…).

The greatest risks are related to attempts to access devices and the information contained in them (personal data, bank accounts, etc.), as well as identity theft (…).”

16. In its document dated February 12, 2024, FSEOM states: “6.4.- Regarding the clarification that the breach could have been avoided by adopting some additional measure, we refer to the fact that if ***COMPANY.1 had complied with the measure (…) agreed in the contract, the impact on those affected could have been avoided.” (sic)

In turn, within the framework of the preliminary investigation proceedings, this Agency has carried out a series of checks on the Internet:

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On September 11, 2024, this Agency verified that, regarding the reactive measure implemented of replacing tokens with roles, on the ***APP.1 website titled “Best Security Practices Recommended by ***APP.1”, the following text extracted from the official documentation of ***APP.1 was included, recommending not to use access keys directly in the application that needs to access resources of ***COMPANY.3 (programmatic tokens), instead using ROLES as a good security practice (***URL.3):

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“Use of ***APP.3 roles for Applications and Services of ***APP.1 that require access to ***EMPRESA.3:

In order for applications running on ***EMPRESA.4 or other Services of ***APP.1 to access resources of ***EMPRESA.3, they must include valid ***APP.1 credentials in their requests to the ***APP.1 API. We recommend not storing ***APP.1 credentials directly in the application or in an instance of ***EMPRESA.4. These are long-term credentials that do not rotate automatically and could have a significant business impact if compromised.

Instead, use a ***APP.3 ROLE to temporarily manage the credentials for applications or services that need to access ***EMPRESA.3. When using a ROLE, you do not have to distribute long-term credentials (such as a username and password or access keys) to an instance of ***EMPRESA.4 or a ***APP.1 Service such as ***APP.2. The ROLE provides temporary permissions that applications can use when making calls to other ***APP.1 resources.”

-

On September 19, 2024, this Agency verified that, regarding the processes established in the ISO 27001 standard, in Annex A.10 of this standard, which establishes cryptographic controls to protect information, encryption requirements for specially protected data, it is stated: “The cryptographic controls of Annex A.10 are based on the principle of least privilege and require that only authorized individuals have access to the cryptographic keys and that these keys are properly protected.”

-

On September 20, 2024, this Agency verified that, in the official documentation of ***APP.1, regarding “Identity Management” and “Best practices for securely storing and using secrets” at the link ***URL.4, the following content could be seen, among others (the underlining is ours):

“A common anti-pattern is embedding ***APP.3 access keys within the source code, configuration files, or mobile applications. When an ***APP.3 access key is required to communicate with a ***APP.1 service, use temporary (short-term) security credentials.

These short-term credentials can be provided through ***APP.3 roles for instances of (…), execution roles for ***APP.4 functions, ***APP.3 roles of ***EMPRESA.6 for mobile user access, and ***APP.5 policies for IoT devices.

When interacting with third parties, it is preferable to delegate access to a ***APP.3 role with the

necessary access to your account resources instead of setting up a ***APP.3 user and sending that third party the secret access key for that user.”

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On September 24, 2024, this Agency verified that in the official documentation of ***APP.1, regarding information on good security practices and recommendations for implementing the National Scheme Level MEDIUM through the configuration of ***APP.1, on the website ***URL.5, the following content could be seen, among others (The information was not updated with the latest version of the ENS (RD 311/2022):

Related measure of RD 3/2010 (Annex II 4.2.5. Authentication Mechanism, page 27):

“Access to systems and assets can be controlled by checking that the root user does not have access keys attached to its ***APP.3 role. Ensure that root access keys are removed. Instead, create and use the role-based system Accounts of ***APP.1 to help incorporate the principle of least functionality.”

FOURTH: According to the report collected from the AXESOR tool on December 15, 2024, the entity FSEOM is an association with a sales volume of (...) euros.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and considering the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After that period, it will expire, and, in

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As a consequence, the file of proceedings shall be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, since FSEOM carries out, among other processes, the collection and storage of personal data of individuals: email address, mobile phone number, and health-related data.

FUNDACION SEOM carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Obligation Breached. Integrity and Confidentiality

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in such a manner that ensures an appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of the application of appropriate technical or organizational measures ('integrity and confidentiality')."

Loss of Confidentiality of Personal Data

On June 23, 2023, FSEOM, in its capacity as the data controller, notified this Agency of a personal data breach in which it reported that "****COMPANY.1 detected unauthorized access (...) that directly affects personal data of participants in a study promoted by the Spanish Society of Medical Oncology, of which ***COMPANY.1 is the CRO and technological provider and, furthermore, the data processor." In its letter dated February 12, 2024, FSEOM provided as Document No. 10 a copy of the contract dated April 20, 2021, between ***COMPANY.1 (as provider) and FSEOM (as client), for the execution of the project "****PROJECT.1".

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For all the above reasons, this Agency understands that there has been a loss of confidentiality of the personal data linked to the project "****PROJECT.1" promoted by FSEOM.

Affected Personal Data

On July 21, 2023, FSEOM submitted to this Agency a letter expanding the notification of this breach, indicating that the contact and health data of (...) individuals had been affected by this incident. In its letter dated February 12, 2024, FSEOM indicated that "The personal data affected by the cyberattack and that were stored on the servers of ***COMPANY.1 were as follows:

- Email address of the participant in the Observational Study
- Mobile phone number
- Health-related data (...) consisting of:
- (...)

In Document No. 3 of that letter, it can be seen that the following personal data was requested from the interested parties: "(...)" and questions related to health (...).

For all the above reasons, this Agency understands that the following personal data of (...) individuals would have been affected by the breach subject to this procedure: (...) and questions related to health.

Chronology of Events and Technical or Organizational Measures

On April 20, 2021, as evidenced by Document No. 10 attached to FSEOM's letter of February 12, 2024, FSEOM and ***COMPANY.1 signed a data processing agreement, in which Annex II obliged ***COMPANY.1 to "(...)"

This contract also included Appendix 3 with additional information on the Security Measures of ***COMPANY.1, among which were:

(...).

On June 23, 2023, FSEOM, in its capacity as the data controller, notified this Agency of a personal data breach in which it reported that ***COMPANY.1 (data processor) detected unauthorized access to the personal data of participants in the study of the project "****PROJECT.1".

On July 5, 2023, the National Association of Cybersecurity and Technological Expertise prepared an incident report indicating that on June 14, 2023, ***COMPANY.1 detected (...).

The report explained that (...).

Regarding the chronology of events, (...).

The attack occurred due to (...).”

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The cited expert report enumerates a series of technical recommendations to improve the platform of ***EMPRESA.1, among which stand out: (...). The report also details improvements implemented by ***EMPRESA.1 regarding (...). On February 9, 2024, the company ***EMPRESA.2 conducted a second expert report on the gap in question, indicating that at the time of the incident (...).

***EMPRESA.1 would have implemented “NEW TECHNICAL AND ORGANIZATIONAL MEASURES ADOPTED BY ***EMPRESA.1 TO AVOID, AS MUCH AS POSSIBLE, SECURITY INCIDENTS LIKE THE ONE THAT OCCURRED,” such as: (...). Additionally, ***EMPRESA.1 would have adopted “SECURITY MEASURES TO REDUCE THE RISK OF SIMILAR ATTACKS” such as: (...).

On September 11, 2024, this Agency verified that, regarding the reactive measure implemented of replacing tokens with roles, on the ***APP.1 website under the title “Recommended Security Best Practices by ***APP.1,” the following text extracted from the official documentation of ***APP.1 is included, in which (...).

On September 19, 2024, this Agency verified that, concerning the processes established in the ISO 27001 standard, in Annex A.10 of this standard, which establishes cryptographic controls to protect information, requirements for encrypting specially protected data, it is indicated: “The cryptographic controls of Annex A.10 are based on the principle of least privilege and require that only authorized individuals have access to cryptographic keys and that these keys are properly protected.”

On September 20, 2024, this Agency verified that in the official documentation of ***APP.1, regarding “Identity Management” and “Best Practices for Storing and Using Secrets Securely,” at the link ***URL.4, the following content can be seen, among others (the underlining is ours):

“A common anti-pattern is embedding access keys of ***APP.3 within the source code, configuration files, or mobile applications. When an access key for ***APP.3 is required to communicate with a ***APP.1 service, use temporary security credentials (short-term).

These short-term credentials can be provided through roles of ***APP.3 for instances of (...), execution roles for functions ***APP.4, roles of ***APP.3 of ***EMPRESA.6 for mobile user access, and policies of ***APP.5 for IoT devices.

When interacting with third parties, it is preferable to delegate access to a role of ***APP.3 with the necessary access to the resources of your account instead of configuring a user of ***APP.3 and sending that third party the secret access key for that user.”

On September 24, 2024, this Agency verified that in the official documentation of ***APP.1, regarding information on good security practices and recommendations for implementing the National Scheme Level MEDIUM through the configuration of ***APP.1, on the website ***URL.5, the following content can be seen, among others (The information is not updated with the latest version of the ENS (RD 311/2022):

Related measure of RD 3/2010 (Annex II 4.2.5. Authentication Mechanism, page 27):

“Access to systems and assets can be controlled by checking that the root user has no access keys attached to their ***APP.3 role. Ensure to remove root access keys. Instead, create and use the role-based system Accounts of ***APP.1 to help incorporate the principle of least functionality.”

In conclusion, the fact that ***EMPRESA.1 (data processor) did not have the measures that have been examined in place facilitated the occurrence of the personal data breach and its greater impact. The aforementioned measures were introduced by the data processor subsequently (reactively), in order to prevent a similar personal data breach from occurring again.

By virtue of Article 4.8 of the GDPR, the data processor is the one who “processes personal data on behalf of the data controller.”

Although the personal data breach occurred in the systems of ***EMPRESA.1, the data processor, and

although said processor did not have in place, at the time the personal data breach occurred, the measures that have just been analyzed, which would have very likely prevented such a breach from occurring or, at least, would have reduced its impact, the data controller is FSEOM.

For all the above, this Agency understands that FSEOM, as the data controller, did not have the appropriate technical or organizational measures in place to prevent an incident like the one that occurred.

Therefore, in accordance with the evidence available at this time in the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to FSEOM, for violation of Article 5.1.f) of the GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, of

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an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...)"

For its part, the LOPDGDD in its Article 71, Offenses, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute offenses."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious offenses and will be subject to a three-year statute of limitations: offenses that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or

organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and Corrective Measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In the present case, considering the severity of the possible infringement, particularly the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if warranted.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the sales volume of FSEOM is considered, amounting to (...) euros.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of

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Agreement to initiate sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to gradate the sanction to be imposed in accordance with the following circumstances, contemplated in the aforementioned provisions.

Prior to this, it is estimated that the following circumstances concur:

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The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing operation in question as well as the number of affected individuals and the level of damages and losses they have suffered (Article 83.2, letter a), of the GDPR): due to the unauthorized access to the personal data of (...) individuals: (...), due to the lack of appropriate technical or organizational measures to prevent an incident such as the one that gave rise to this

procedure.

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The categories of personal data affected by the infringement (Article 83.2, letter g), of the GDPR): Among the data affected by the breach, there were health data of the patients participating in the Project “***PROJECT.1”.

Furthermore, the following aggravating factors are considered:

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The link of the infringer's activity with the performance of personal data processing (Article 76.2, letter b), of the LOPDGDD): FSEOM is an organization dedicated to collecting health data on a specific pathology, and is therefore accustomed to the processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for an initial administrative fine of 70,000.00 euros to be set.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

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In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the agreement to initiate the sanctioning procedure, the resolution adopted may require FUNDACION SEOM to adopt the following measures within THREE MONTHS from the date of effectiveness of the resolution concluding this procedure:

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Demonstrate the effective application of appropriate technical and organizational measures, not only to comply with the regulations but also to demonstrate compliance to the supervisory authorities and affected individuals.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate the opening of a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA, with NIF G07324239, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: INCORPORATE into the file, for evidentiary purposes, the notification of the violation of personal data security, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of 70,000.00 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to the FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA, with NIF G07324239, granting it a hearing period of ten working days to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document. In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that should be imposed in this procedure. With the application of this reduction, the sanction would be set at 56,000.00 euros, resolving the procedure with the imposition of this sanction. Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 56,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 42,000.00 euros. In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction. For these purposes, in case of opting for either of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction indicating which of the two reductions it is opting for or if it is for both. In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (56,000.00 euros or 42,000.00 euros), it must do so by depositing it into account No. IBAN:

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(BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure

that appears in the heading of this document and the reason for the reduction of the amount to which it is adhering. Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be filed against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On January 15, 2025, FSOM proceeded to pay the sanction in the amount of 42,000.00 euros making use of the two reductions provided in the initiation agreement transcribed above, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: FSOM has expressly waived any administrative action or appeal against the sanction.

FOURTH: In the initiation agreement transcribed above, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notification of the initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at €42,000.00, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, FSOM has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or administrative appeal.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of €70,000.00.

After having proceeded, FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA has made prompt payment and acknowledged responsibility, a 40% reduction of the total mentioned is applied, resulting in a final amount of €42,000.00.

SECOND: TO DECLARE the termination of procedure EXP202416691, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA to notify the Agency within 3 months from the date this resolution becomes final and enforceable, regarding the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal, the present authority accepts the express renunciation stated by FUNDACIÓN SOCIEDAD CIENTÍFICA DE ONCOLOGÍA MÉDICA, thus precluding the possibility of filing a voluntary appeal for reconsideration against this resolution.

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Hello without prejudice to the possibility of resorting to the contentious-administrative jurisdiction. Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no

possibility of any administrative appeal having expressly waived it, this resolution will be firm and fully enforceable from the moment of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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